

25LBCV01908 25LBCV01908

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1. Background

Facts

Plaintiffs, Brenda and Eriberto

Perez filed this action against Defendant, American Honda Motor Co., Inc. for violations of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement – concealment.

2. Motion

for Summary Judgment

a.

Initial Note

Defendant filed a notice of motion

for summary judgment on 4/21/26. The

notice of motion indicated Defendant was seeking summary judgment on

Plaintiffs' complaint on the ground that it is barred by the statute of limitations. On 4/22/26, Defendant filed an amended notice

of motion for summary judgment, which did not meaningfully alter the original

notice of motion. On 4/27/26, Defendant

filed a third notice of motion for summary judgment, which notice did not

indicate it was amended. The 4/27/26

notice of motion indicates Defendant seeks summary judgment on the complaint on

the ground that it is barred by the statute of limitations, but alternatively

seeks summary adjudication of each cause of action in the complaint.

Defendant filed separate statements

on 4/21/26 and 4/22/26, but not on 4/27/26.

Each separate statement contains six facts, and the Court cannot locate a difference between the two statements.

The statements do not comply with CRC 3.1350(b) and/or (h), which govern separate statements filed in connection with motions for summary adjudication, and therefore the Court declines to rule on the alternative motion for summary adjudication.

b. Burdens
on Summary Judgment

Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.”

(Id. at §437c(o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (Id. at §437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence....” Aguilar, supra, 25 Cal.4th at 865-66,

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action “by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Id. at p. 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing” to support an essential element of his case. (Aguilar, supra, at p. 855.) Under the latter approach, a defendant’s initial evidentiary showing may “consist of the deposition testimony of the plaintiff’s witnesses, the plaintiff’s factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (Lona v. Citibank, N.A., supra, 202 Cal.App.4th at p. 110.)

In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff’s factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheidt v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary judgment statute: “The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating (‘disproving’) an essential element of the plaintiff’s cause of action.” (Brantly v. Pisaro (1996) 42 Cal.App.4th 1591, 1598.) Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more

material facts exists as to that cause of action. (Id. at §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion.

(D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

c. Complaint

Plaintiffs allege their vehicle came with several warranties, including a bumper-to-bumper warranty, a powertrain warranty, and an emission warranty.

Complaint, ¶7. They allege various problems with the vehicle, including transmission defects, engine defects, electrical defects, and other defects and non-conformities. ¶11.

d. Parties'

Positions

Defendant argues Plaintiffs purchased the automobile in 2015 but did not file suit until 2025. Each cause of action has a statute of limitations of one year (implied warranty), four years (Song-Beverly), or three years (fraud). Defendant therefore contends the complaint fails as a matter of law and summary judgment is appropriate.

Plaintiffs oppose the motion on numerous grounds. First, they argue Defendant has withheld discovery and the lack of responses supports denial of the motion. Second, they argue the NVLW and powertrain warranties apply and the statute of limitations on those warranties had not expired when they filed suit. Third, they argue the discovery rule tolls the statute. Fourth, they argue their claims were tolled under the repair doctrine. Finally, they argue their implied warranty and fraud claims are not barred.

e.

Powertrain Warranty

Plaintiffs allege the vehicle came

with a powertrain warranty. The powertrain warranty was for six years or 70,000 miles. Because Plaintiffs purchased the vehicle on 10/01/15, the powertrain warranty expired six years thereafter, on 10/01/21. The statute of limitations then expired four years later, on 10/01/25. Plaintiffs filed suit on 6/27/25, within that period.

Defendant relegates this issue to footnote #1 in its reply papers.

Defendant argues there are no triable issues concerning the powertrain warranty because (a) the powertrain warranty is not all-encompassing and is very limited in scope, (b) there is no indication in the records that Plaintiffs ever presented the vehicle for engine or transmission issues falling under the powertrain warranty, and (c) Plaintiffs' only evidence in this regard is Plaintiff's self-serving declaration.

Defendant is attempting to improperly flip the burden on summary judgment.

Plaintiffs' complaint alleges the existence of a powertrain warranty and the existence of transmission and/or engine defects. Defendant therefore had the obligation, in the moving papers, to negate these allegations.

It did not do so. The Court has reviewed the separate statement and moving papers in support of the motion, and they are both entirely silent concerning the powertrain warranty. Defendant therefore failed to meet its moving burden to negate Plaintiffs' allegations concerning the powertrain warranty, and the motion for summary judgment is denied.

f.

Conclusion

The motion for summary judgment is denied. As noted above, the alternative motion for summary adjudication was not properly noticed and is therefore also denied.

g.

Notice

Defendant is ordered to give notice.